

23STCV25724 23STCV25724

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-12

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Case Number: 23STCV25724 Hearing Date: August 12, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

12, 2026 TRIAL

DATE: Vacated

CASE: Maria Guadalupe

Puentes-Sandoval v. General Motors LLC

CASE NO.: 23STCV25724

PLAINTIFF'S

MOTION TO TAX COSTS

MOVING PARTY: Plaintiff

Maria Guadalupe Puentes-Sandoval

RESPONDING

PARTY: Defendant

General Motors LLC

I. BACKGROUND

On October 23, 2023, Plaintiff,

Maria Guadalupe Puentes-Sandoval, filed a Complaint against Defendant, General Motors LLC, alleging four causes of action based on the Song-Beverly Consumer

Warranty Act for the purchase of an allegedly defective used vehicle.

On January 12, 2026, the court granted Defendant's motion for summary judgment.

On January 30, 2026, the court entered judgment in Defendant's favor.

On the same day, Defendant served Plaintiff with notice of the entry of judgment.

On April 23, 2026, Defendant filed a Memorandum of Costs.

On May 12, 2026, Plaintiff filed this Motion to Tax Costs.

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On July 24, 2026, Defendant filed an opposition.¿

On August 5, 2026, Plaintiff filed a reply.

II. DISCUSSION & LEGAL STANDARD

The motion lacks merit for two reasons. First, the motion is untimely. A party challenging the amounts claimed may file a motion to tax costs, which must be served and filed 15 days after service of the cost memorandum.¿ If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6, subdivision (a)(4).¿ (Cal. R. Ct., rule 3.1700(b)(1).)¿ Here, Defendant served the cost memorandum on April 23, 2026 by electronic service. Therefore, Plaintiff had until May 11, 2026 to file this motion. However, Plaintiff filed the motion one day passed the deadline.

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Second, Plaintiff does not raise any meritorious challenges to the cost memorandum. Contrary to Plaintiff's position, the cost memorandum was timely filed. (see *Simgel Co. v. Jaguar Land Rover North*

America, LLC (2020) 55 Cal.App.5th 305, 313-315). Additionally, there nothing objectionable on the face of the cost memorandum.

III. CONCLUSION

The
motion to tax costs is DENIED. Defendant is awarded costs in the sum of \$1,040.15.¿

Defendant is ordered to give notice, unless waived.

Dated: August 12, 2026

Brock T. Hammond

Judge of the Superior Court